# PRIVACY POLICY

Effective April 01 2021. All responsible parties are required to understand and enforce the requirements of this policy at all times. Any breach or questionable practice must be reported within 24-hours or the responsible party will be held accountable

## PRIVACY POLICY

The domains motorolanursery.com, motorolasounds.com and sgwglobal.com are operated by Meizhou Guo Wei Electronics Co., LTD. All products, services and support on these sites are offered by and through Meizhou Guo Wei Electronics Co., LTD. The products displayed are the property Meizhou Guo Wei Electronics Co., LTD (trading as “SGW Global”) an Official Motorola Licensee. All rights reserved. Motorola and the stylised M logo are registered trademarks of Motorola Trademark Holdings, LLC. his Privacy Policy applies to and recognizes the collection of personally identifiable information ('Personal Information') that is collected from you when product support is requested or a purchase is completed, such as name, physical address, email address, telephone number and credit card information. A second classification of public data ('Non-Personal Information') is also generated by the Site in customizing the user experience. The Privacy Policy is located at **www.sgwglobal.com** and all aspects of the Site are restricted by that policy. In the event of a disagreement with this Privacy Policy it is that policy that will be in force.

## CONTACT INFORMATION FOR SGW GLOBAL

Contact phone numbers and e-mail addresses are published on the Web site at **www.sgwglobal.com** and this information will remain accurate at all times. General inquiries or notifications related to this policy can be sent to **motorola.privacy@sgwglobal.com** and a representative will make contact. You should be certain to include a valid

phone number and an account information at a minimum to ensure a quicker response.

Urgent communications with SGW Global require expediency and should be handled differently. Please use the phone as a preference unless it is otherwise not possible to do so. If e-mail must be sent to **motorola.privacy@sgwglobal.com,** a response should be received within 48 hours or you should phone the support phone number instead. You should be very certain that your communication has been received by a representative and that they have acknowledged the information with a service ticket number.

The mechanism for collection and updates will be either the Service (forms on the Web site, prompts, customer service) or phone conversation after identity has been verified.

## LOCATION OF PERSONAL INFORMATION

SGW Global is a Chinese company, and it is bound by the laws of the People's Republic of China for all legal matters. All of our data centers are located in the United States, UK and European Economic Area. As such different Regional and Federal laws may apply to the organizations that operate the data centers. You must be certain that providing Personal Information does not violate any law that is applicable to you or your right to use the Services.

If your use of the Services or disclosure of certain information to SGW Global would violate any law that is applicable to you, your right to use the Services and/or disclose such information is revoked. SGW Global will comply with any court order so long as it is found to be lawful in Chinese courts. No other request to access Personal Information from any party will be honored without a Chinese court order or permission from the owner of the account that has been properly validated.

If you become aware of any condition in the use of the Service that might directly or indirectly violate a law you are required to notify your SGW Global representative directly (see the Questions & Feedback section of this policy).

## AGE OF CONSENT

English

SGW Global does not sell products or services for purchase by any individual under the age of 18-years old. We do not knowingly solicit or collect Personal Information any person under the age of eighteen. If you believe that a child under the age of eighteen has disclosed Personal Information to the Service you are required to report this to a SGW Global representative or send an e-mail to **motorola.privacy@sgwglobal.com** with the details.

## COOKIES

"Cookies" are pieces of information that may be placed on your computer by a Web site for the purpose of remembering status information and enhancing your communication and interaction with that Web site. We may use cookies to customize your visit to our Web sites and for other purposes to make your visit more convenient or to enable us to enhance our service.

In addition to our cookies, we may also use (and our third party advertisers may use) clear gifs, Web beacons, Google Analytics, and third party cookies to improve the performance of our Web sites, provide certain features such as advertising, or to anonymously track usage of our Web sites and track the online activity of users.

SGW Global may also use cookies to measure traffic patterns and which areas of the SGW Global site you have visited and your visiting patterns. This information is sometimes called a 'clickstream.' SGW Global may use this information to understand how our users navigate our site and to determine common traffic patterns, including what site the user came from.

We may use similar mechanisms in our HTML-based emails to track the usage of such emails in much the same manner.

The cookies used in the Service have been categorized based on the categories found in the ICC Cookie guide. They are as follows:

### CATEGORY 1: STRICTLY NECESSARY COOKIES

These cookies are essential in order to enable you to move around the website and use its features, such as accessing secure areas of the website. Without these cookies services you have asked for, like shopping baskets or e-billing, cannot be provided.

English

### CATEGORY 2: PERFORMANCE COOKIES

These cookies collect information about how visitors use a website, for instance which pages visitors go to most often, and if they get error messages from web pages. These cookies don't collect information that identifies a visitor. All information these cookies collect is aggregated and therefore anonymous. It is only used to improve how a website works.

### CATEGORY 3: FUNCTIONALITY COOKIES

These cookies allow the website to remember choices you make (such as your user name, language or the region you are in) and provide enhanced and more personal features. For instance, a website may be able to provide you with local weather reports or traffic news by storing in a cookie the region in which you are currently located. These cookies can also be used to remember changes you have made to text size, fonts and other parts of web pages that you can customize. They may also be used to provide services you have asked for such as a live chat session. The information these cookies collect may be anonymized and they cannot track your browsing activity on other websites.

## USE OF PERSONAL INFORMATION

Websites operated by SGW Global will use your personal information for the following purposes with consent inferred:

- to provide you with a convenient, personalized experience on the Web site and Service;
- to provision services and products requested by you and notify you as such;
- to enable staff, vendors and contractors to provide and assist in the support of such services and products to you;
- to register for warranty on parts and equipment sold or rented to you;
- to generate statistical information and demographics about our Service;
- to make improvements to interface, performance and service quality for the Service;
- to comply with legal obligations.

English

SGW Global will use your Personal Information only with explicit consent from you:

- to market products, updates, special offers and services to you that we believe may be of interest;
- to run promotions and special activities that enhance the Service experience.

Under no circumstance will credit card information be shared with any third party unless they are involved in processing payments for services that you have purchased from SGW Global and are therefore considered a part of the Service.

SGW Global may also use and disclose your Personal Information when your account has been involved in violations of our Terms of Service. These cases may involve law enforcement personnel to detect and prevent unlawful access to your Personal Information or to investigate activities that threaten the integrity of the Service and our network.

SGW Global may use your Personal Information as required by courts or administrative agencies in connection with a sale, merger, or reorganization of the business. Those parties are bound by strict contractual provisions with our Service and only have access to Personal Information needed to perform their job functions, and may not use it for other purposes. They will process the Personal Information in accordance with this Privacy Policy.

In addition, SGW Global has put in place the **Data Protection Policy** that sets out our commitment to protecting personal data and how we implement that commitment with regards to the collection and use of personal data. We encourage you to carefully review the **Data Protection Policy** as well.

### 6.1) IF YOU WISH TO PREVENT OR DISABLE COOKIES

You can always elect to not use the Website if cookies are not desirable and by doing so are not permitted to use the Service. However, there are several ways to disable cookie functionality, though the site may not offer all of its features without them:

- Set the Internet browser to prompt when a cookie is received or disable cookies altogether. Check your browser's Help menus;

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- Delete the cookies from the browser cache and Temporary Internet Files after leaving the website;
- Enable private browsing by enabling 'Incognito' in Chrome, 'Private Browsing' in Firefox / Safari or 'In Private' in Internet Explorer.

**6.2) IF YOU WISH TO USE COOKIES BUT OPT-OUT OF TARGETED ADVERTISING**

If you wish to notify third-party advertisers that you do not wish to participate in their programs using cookies it is recommended that you visit **www.networkadvertising.org/choices/** and follow the detailed instructions there.

To opt-out of Google Analytics go to **tools.google.com/dlpage/gaoptout** and install the browser add-on.

## THIRD-PARTY INTERACTIONS ON THE WEBSITE

SGW Global's web sites may allow third parties to provide products and services directly to SGW Global customers. Such relationships are often designated with a 'Provided By' or 'Powered By' company logo or other similarly worded designation. When processing or performing the named function that party will collect your information and share Personal Information related to the transaction with SGW Global. You may review the privacy practices of the third party either by clicking the link on the bottom of the page or by clicking on the 'Provided by Company' logo, which will take you to their web site.

Software that is downloaded or installed from the SGW Global website may be provided by a third-party developer / license that requires Personal Information to enroll. If the product is provided by a third-party a link will be provided to the organization's website where the Privacy Policy and Terms of Service can be examined. Activating the link or downloading the software grants SGW Global permission to share the required Personal Information with the third-party website and accepts that SGW Global is not responsible for the conduct, data policies or security of the third-party. All offers, links, promotions and services that advertise a third-party are separate and distinct from SGW Global websites and excluded from our policies that protect consumers.

Partners, promotions and other third-party content is validated against standards and conditions but it is always possible that something s

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through checks and balances. If any partner or content is discovered to be fraudulent or employ questionable conduct we will remove their advertisements, product or service from the website. Report all scams or abuses to **motorola.privacy@sgwglobal.com**.

## SECURITY OF PERSONAL INFORMATION

SGW Global has invested and deployed a wide variety of technology and security features to make reasonable efforts to ensure the privacy of information on its network. Operations guidelines ensure privacy is safeguarded at every level of our organization.

Each subscriber to the Service is provided with security 'secrets' that grant access to Personal Information stored within the account. You are responsible for the protection of your security information in the form of usernames and passwords, keys, security questions and answers and codes. Accounts that are compromised because a third-party obtained this confidential information are the sole responsibility of the account owner, including purchases, damages and actions taken while impersonating the credentials.

Suspicion of a security breach or compromise of the account secrets should be immediately reported to customer support to minimize damage and risk. The agent will assist with securing the account and investigating the extent of the breach. If the symptom is reported promptly the agent will assist with reversing transactions or payments that are proven fraudulent. Consumer protection law protects any victim of fraud from charges or penalties if the activity is quickly reported and full cooperation is provided to the Vendor to investigate.

A breach that is not reported within 24 hours of detection can increase risk to the platform and other third-parties. This is a violation of the Terms of Service and it will result in immediate suspension of the account and may lead to legal action from SGW Global or from third-party Partners (payment gateways, credit card companies, etc.) if the conduct is found to be irresponsible.

## SECURITY OF DIGITAL TRANSMISSIONS

Key communications with the data center are encrypted in transit using Secure Sockets Layer (SSL) with Transport Layer Security (TLS) to res

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third-party eavesdropping to the Service. This mechanism will protect the transmission of Personal Information as it travels to our infrastructure, where it is protected by our security. The browser will display a lock icon to validate the use of SSL on secure parts of the site where forms collect data, payments are processed and Personal Information is handled or updated.

SGW Global uses industry standard browser encryption with a bit-strength of 128-bit or 256-bit to secure communications.

Personal Information which you voluntarily include and transmit through publicly accessible forums (i.e., chat rooms, blogs, instant messaging) may be viewed and used by anyone with access to such forums. SGW Global assumes no responsibility for anything that is shared from the Service to one of these mediums.

## ACCOUNT INFORMATION

Personal Information about you is available at your request and can be changed at your request. All necessary steps must be taken to validate your identity before the request is fulfilled. Personal Information or security secrets will be requested and compared to the records the Service has on file to the satisfaction of the SGW Global representative. Accounts that have been compromised in the past may require multiple validation tests to satisfy the requirement. This is for your protection and cooperation is expected.

You are responsible for ensuring that the information the Service has on file for you is accurate at all times.

You can refer to **Data Protection Policy** for more detail on how to handle your personal information.

## THIRD-PARTY WEBSITES AND SERVICES

Our Service may contain links to other Web sites and services not maintained by SGW Global. In addition, other Web sites and services may also reference or link to SGW Global. We encourage you to be aware when you leave our service, or surf the Internet, and to be aware the privacy statements will differ. We do not endorse, screen, or approve, and are not responsible for the privacy practices or the content of, such

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Web sites and services. SGW Global does not assume any liability for third parties that have been provided with information as permitted by this Privacy Policy or who have collected information as permitted by this Privacy Policy (such as advertisers using third party cookies).

We are not responsible for the Personal Information collected from any third-party Web site or service. Requests to de-list or delete must be addressed with the responsible party. Partner organizations are actively involved in the delivery of the Service and the posted Privacy Policy for these vendors may follow different guidelines.

## MARKETING OPT-OUT

If you do not want your Personal Information used by SGW Global for any direct marketing purposes, then you may opt-out of such disclosures by emailing us at **motorola.privacy@sgwglobal.com** to request removal.

The Service will request from time to time to include your Personal Information in mailing lists and marketing to send information about specials and other services from SGW Global or our partners. If you do not wish to receive these communications, the choice to opt-out should be chosen.

## CALIFORNIA CONSUMER PRIVACY ACT (“CCPA”) PROVISIONS

SGW Global is committed to comply with CCPA provisions.

SGW Global shall not sell the Personal Data or Proprietary Information. “Sell” means selling, renting, releasing, disclosing, disseminating, making available, transferring, or otherwise communicating the information for monetary or other valuable consideration.

SGW Global shall not retain, use, or disclose the Personal Data: (a) for any purpose other than for the specific purpose of performing the services set forth or as otherwise permitted by the CCPA and its implementing regulations, (b) for a commercial purpose other than providing the services specified in the agreement.

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SGW Global will cooperate respond to requests from individuals related to the Personal Data effectively and timely. These requests include, but are not limited to, requests to review, correct, amend or delete Personal Information.

SGW Global will not collect, process, use, retain or disclose any Personal Data of individuals 15 years of age or younger under the terms of this Agreement.

## CHANGES TO POLICY

We reserve the right, at our discretion, to change, modify, add, or remove portions from this policy at any time.

Events will be governed by the policy for which the date falls between the Effective Date at 12:00 am PST and the Retired Date at 11:59 pm PST with all provisions and changes in effect.

You are responsible for checking the new policy and understanding the changes. It is recommended that periodic visits to the Web site to view the Privacy Policy or follow up when the notification e-mails are received will keep you up to speed.

## QUESTIONS AND FEEDBACK

If you need clarification about something in this policy or you have feedback you wish to share, please send us a detailed message to **motorola.privacy@sgwglobal.com**, or send mail to one of the following addresses:

**Meizhou Guo Wei Electronics LLC – North America**
16192 Coastal Highway, Lewes,
Delaware 19958, County of Sussex,
United States of America.

**SGW Global – UK/Europe**
3 Berkeley Waye, Heston,
Hounslow, Middlesex,
TW5 9HJ. United Kingdom.

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**SGW Global – China**
No. 3038 Luosha Road, Liantang,
Luohu District, Shenzhen, 518004,
Guangdong Province, People's Republic of China.

## IMPLIED CONSENT

By using the Service, you consent to the collection and use of information by Customers as specified in this policy. Should you in some way be aware of a reason why the Privacy Policy must not be applied to you OR should you know you are barred from legally using this service, you are required to cancel your subscription (where applicable) and stop using the service immediately.

LET'S STAY IN TOUCH

Support

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